made by the Attorney General's Registry is shocking." 182 F. Supp. 3d, at 1057. And although California subsequently codified a policy prohibiting disclosure, Cal. Code Regs., tit. 11, §310(b)—an effort the District Court described as "commendable"—the court determined that "[d]onors and potential donors would be reasonably justified in a fear of disclosure given such a context" of past breaches. 2016 WL 6781090, *5.

The Ninth Circuit again vacated the District Court's injunctions, and this time reversed the judgments and remanded for entry of judgment in favor of the Attorney General. 903 F. 3d 1000. The court held that the District Court had erred by imposing a narrow tailoring requirement. *Id.*, at 1008–1009. And it reasoned that the disclosure regime satisfied exacting scrutiny because the up-front collection of charities' Schedule Bs promoted investigative efficiency and effectiveness. *Id.*, at 1009–1012. The panel also found that the disclosure of Schedule Bs would not meaningfully burden donors' associational rights, in part because the Attorney General had taken remedial security measures to fix the confidentiality breaches identified at trial. *Id.*, at 1013–1019.

Page Proof Pending Publication

The Ninth Circuit denied rehearing en banc. *Americans for Prosperity Foundation* v. *Becerra*, 919 F. 3d 1177 (2019). Judge Ikuta dissented, joined by four other judges. In her view, the panel had impermissibly overridden the District Court's factual findings and evaluated the disclosure requirement under too lenient a degree of scrutiny. *Id.*, at 1184–1187.

We granted certiorari. 592 U. S. —— (2021).

II

A

The First Amendment prohibits government from "abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the